GS Foundation 2024: Modern India
Handout 12: Industrial Phase: Administrative Policies
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The robber-ruler synthesis eventually gave way to what would become classical colonialism, with the recognition of the need for law and order and a modicum of reasonable governance. – Amartya Sen

Major overhauling of administrative structure:

Factors	Features
• Material Compulsion: Need of Industrial Capitalism of London • Ideological Factor: Liberalism and Utilitarianism advocating administrative reforms to pull out of backwardness and stagnation.	• Better law and order • Judicial reforms, Contract Law • New land revenue settlements • Reforms in civil service, police, and army

(1) Law and Order

Improvement in the law-and-order condition was essential if India had to develop as a market for the British manufactured goods. That's why during this phase, several Governor Generals took steps for improvement in the law-and-order situation.

Suppression of Pindaris and Pathans

- **Pindaris** plunderers created law and order problems in parts of India. Earlier they were auxiliary forces to the Maratha army. But when Maratha declined, they turned into freelance marauders, involved in loot and plunder.
- GG Hastings decided to suppress the Pindari menace. He dispatched a big army under the command of General Thomas Hislop. Hislop started to encircle Pindaris from three sides. Most important Pindari leaders like Heeru, Buran and Wasir Md. Chitu were killed. Only Karim Khan surrendered before the army. He was offered a Jagir near Jaipur after he promised to lead a peaceful life.

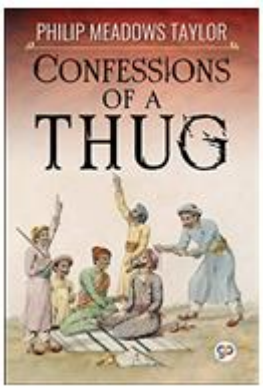
Villagers burning themselves after a Pindari raid.

Thugs stabbing the eyes of murdered traveler before throwing the body into a well.

- **Pathans** were also a threat to law and order. Hasting started a military offence against the Pathans. Pathan leader Aamir Khan surrendered and promised to lead a peaceful life. He was afforded Jagir of Gauspur.

Suppression of Thugee

- Thugs were the criminals, who were mainly linked with road robbery, ritualized murder and mutilation on highways. Poverty and unemployment created by British rule that gave a new fodder to this profession.
- Bentinck decided to suppress Thugee.
    - Thuggee and Dacoity Department 1830.
    - Colonel William Sleeman headed it from 1835-39 to eliminate the problem. Sleeman developed elaborate profiling and intelligence techniques that pre-dated similar methods in Europe and the US by decades.

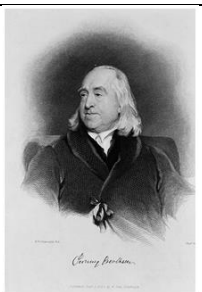


Sensational Ethno-graphic Thriller (1839) and bestseller in 19th century Victorian England. It was the most influential novel about India prior to Rudyard Kipling's Kim (1901). Its popularity established the word "thug" in the English language.

(2) Judicial Reforms

During this period, the judicial reforms were being implemented under the influence of utilitarian ideas. Utilitarian ideas were deeply associated with the rise of industrial capitalism in Britain. Jeremy Bentham was a critic of the Indian Judicial system, and he underlined following weaknesses in it.

- The absence of Habeas Corpus
- Lack of codification and uniformity in legal system
- Some Indian laws were cruel and inhuman.



Jeremy Bentham (1748-1832) - first person to be an aggressive advocate for the codification of all the common law into a coherent set of statutes, first to use 'codify' as a verb.

Therefore, under Benthamite influence, following steps were undertaken:

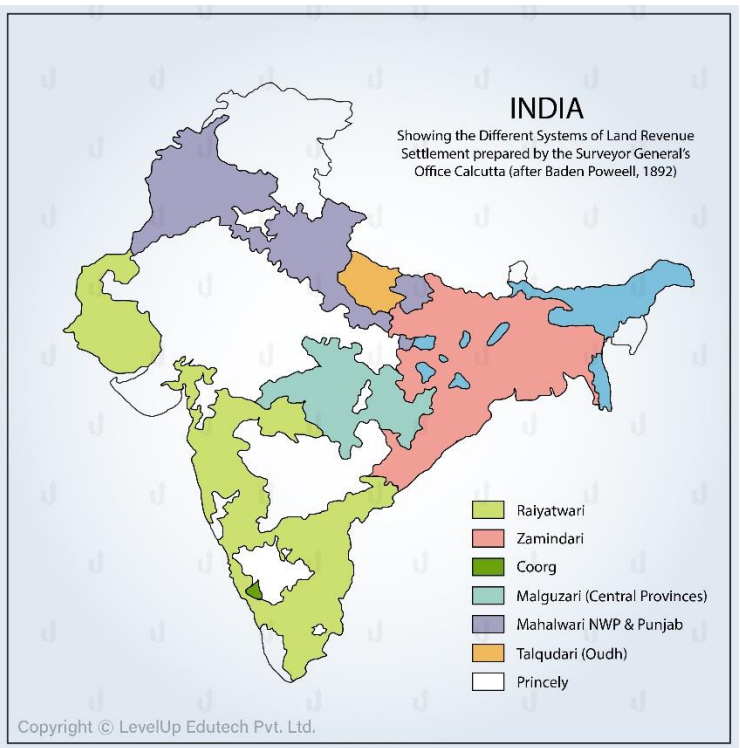
Codification of Laws	Uniformity of Laws
Charter Act of 1833 provided for a law member in the Governor General's council. Lord Macaulay was appointed as the first law member to start codification and a Law Commission was established.	Earlier, a duality existed in the Indian Judicial System. On the one hand, the courts like Sadar Diwani Adalat and Sadar Nizamat Adalat existed in Calcutta, in which Indian laws were prevailing. On the other hand, there was a Supreme Court in Calcutta, where English laws were invoked. This duality was

Later, it became the basis for IPC 1860, CrPC 1872, CPC 1908 etc.	abolished. The Sadar Diwani Adalat, Sadar Nizamat Adalat and the Supreme Court were abolished, and the High Courts were established at Calcutta, Madras and Bombay on the basis of High Court Act of 1861.

In the era of William Bentinck, English and regional languages replaced Persian as the court language (1835).

(3) Revenue Reforms

Earlier, the Permanent Settlement was guided by mercantilist interest. But, in the early decades of the 19th century, India was being developed as a British commodity market. While on the one hand, British capitalists wanted to reduce land revenue to increase purchasing power of peasants, there was increasing cost due to infrastructure development (roadways, canals and rail), and imperial military cost of expansion which put the company in financial stress. So, the company was not ready to reduce the amount of land revenue. As a solution, finally, intermediaries/zamindars were targeted and deprived of agricultural surpluses.



Thus, new revenue arrangements viz. Ryotwari and Mahalwari systems were developed during this period to suit the changed requirements of the British government. Permanent settlement was not expanded to other areas. The nature of land revenue settlements in these parts of India varied. The British adjusted their revenue-strategy according to the special characteristics of the agrarian structure in each region. The fixing-up of the revenue arrangements depended, to a very great extent, on their understanding of the agrarian system which appeared to be strange and complex from the point of view of the British.

(A) Ryotwari System

The Europeans thought that in south and south-western India there were no zamindars holding big estates with whom revenue settlement could be struck. It was also felt that the super-imposition of the zamindari settlement would completely disrupt the existing order there. Many English civilians like Reed and Munro, who had first hand knowledge about the region recommended that the arrangement should be made directly with the actual cultivators or the ryots.

Ryotwari System: Madras Presidency

- Ryotwari was first implemented in Barahmahal region by **Colonel Alexander Reed** in 1792 when the region was taken from Tipu Sultan. Soon, **Thomas Munro** elaborated and implemented it in some districts (combined several villages as revenue unit and collected revenue directly) in 1810, in the areas of Malabar, Canara, Coimbatore, Dindigul.
- In Madras province, there was usually no purchase of land by moneylenders from the peasants till 1854, because even moneylenders were afraid to invest money due to high revenue rate. However a Ryotwari Commission setup in 1854 introduced certain reforms, and non-agricultural classes like moneylenders started to purchase lands from peasants.

Ryotwari System: Bombay Presidency

The British took away the land of western India from the Marathas and there needed the management of land revenue. Elphinstone, a disciple of Munro, attempted to implement the Ryotwari system in Bombay but the land revenue was too high upto 1836. In 1836, certain reforms were brought in after the survey conducted by Wingate and Goldsmith, and based on this land revenue rate was reduced.

Ryotwari: Characteristics

- Unlike the Zamindari system, every registered raiyat was considered as the owner of the land, and the agreement of land revenue was made with him.
- The land was made salable. The ryots were given right of transaction of land.
- The land revenue was temporarily fixed for 30-40 years. Thus, a temporary agreement (not permanent) was done with the ryots and the revenue could be increased periodically.
- Land revenue to be paid was very high, sometimes even 50-55% of the total produce.
- Community land was owned by the government.

This system was introduced in Madras Presidency, Bombay Presidency, Assam and some other portions covering 51% area of British India.

Ryotwari: Evaluation

The Ryotwari system had two objectives: to Increase in state income (success); and to protect tenants (not successful)

- In reality, under the Ryotwari Settlement the state became the virtual zamindar.
- Not only the revenue rate was very high, the peasants were also not allowed any exemption in case of bad harvests or natural calamities.
- No uniformity in the determination of land revenue. Privileged farmers had to pay relatively less revenue.
- Gradually, due to over-assessment, the land shifted from the poor peasants to rich peasants. Therefore, a landlord class established (like zamindar), which began crop-sharing.
- It encouraged the Money-lending later, thus **rural-indebtedness** became a big problem in the Ryotwari region.

(B) Mahalwari System

Here, the revenue settlement was made mahal-wise or estate-wise. The name mahalwari has been derived from the word mahal or village. Here the deal was struck with the village headman or with the leading families of the village collectively.

It was implemented by Holt McKenzie first time in 1822. He is regarded as the father of Mahalwari settlement. Later, in the era of Bentinck, Thomson and Martin Bird played a role in its evolution.

During the era of William Bentinck and Dalhousie, this system was introduced over a large area of North India. First it came into force in North (central region of the Mughal Empire – UP, Punjab, MP), and later implemented in NW, Awadh etc. In these regions, stretching from Punjab to Awadh and CP, panchayat system was quite active.

Mahalwari features

- Community Ownership
    - In this system, a village or mahal as a whole, was held responsible for realizing revenue and members of the Mahal paid their revenues collectively. Thus, the concept of community ownership on the land was accepted. Land revenue would be collected through the head of the village (Muqaddam)
    - However, the private responsibility of the farmers remained. The community had to pay the revenue on behalf of the members who failed to pay the land revenue, but the community would acquire the property of that farmer and distribute it among other co-sharers.
- Rate and duration
    - Very exorbitant rate. (Normally 65%, going up to 95% of surplus)
    - Unlike zamindari, it was fixed temporarily.

Mahalwari Impact

- In this arrangement too, the oppression of the cultivators by the leaders of the village was inevitable. The headmen of the village misused their power and swindled the poor peasants.
- In the Mahalwari assessment area, especially in Awadh, the taluqdars (big landlords) were uprooted who opposed Mahalwari.
- Exorbitant rates of the land revenue put tremendous pressure. Thus, in Mahalwari region, there was intense peasant rebellion in 1857.

Zamindari	Ryotwari	Mahalwari